

SN : 0000016

LES IMMEUBLES BUZZ INC / BUZZ REALTIES INC

BROKER AGENCY AGREEMENT

(herein after the « **Agreement** »)

BETWEEN :	BUZZ REALTIES INC. , a corporation duly incorporated according to the <i>Business Corporations Act</i> , having its head office at 2200-1250, René-Lévesque Blvd W, Montreal, Québec, H3B 5E9;
	(hereinafter referred to as “ BUZZ ”)
AND :	NAME OF BROKER , (residential and commercial) real estate broker, domiciled and residing at (address of broker);
	(hereinafter referred to as the “ Broker ”) (BUZZ and the Broker referred to as the “ Party ” or the “ Parties ”)

WHEREAS the Broker holds a valid real estate broker’s licence (hereinafter referred to as the “Broker’s License”) delivered by the *Organisme d’autoréglementation du courtage immobilier du Québec* (hereinafter referred to as the “**OACIQ**”);

WHEREAS BUZZ holds a valid licence (hereinafter referred to as the “**License**”) and is validly registered as an agency with the OACIQ;

WHEREAS BUZZ and the Broker wish to enter into an agreement pursuant to which the Broker will provide residential and commercial real estate broker services to BUZZ as set out below, and BUZZ shall retain the services of the Broker as an independent contractor within the meaning of the law;

NOW THEREFORE, THE PARTIES AGREE AS FOLLOWS :

PREAMBLE

The Preamble shall form an integral part of this Agreement;

Representations and Warranties

Both Parties represent that they are fully authorized to enter into this Agreement. The performance and obligations of either Party will not violate or infringe upon the rights of any third-party and any organization, or upon any professional order or governmental regulation;

The Broker has no authority to bind or obligate BUZZ and shall not obligate or make BUZZ liable in any circumstance except in the ordinary course of business, with the written consent of BUZZ’s director. Nothing in this Agreement shall be construed to create an employer-employee relationship, a partnership, or joint venture between the parties;

Notwithstanding the foregoing, the Broker does not require BUZZ’s consent for listings, promises to purchase and brokerage mandates;

The Broker hereby represents and warrants that it is not bound by any non-competition or non-solicitation agreements with any other brokerage agency;

For the duration of this Agreement, the Broker undertakes not to provide real estate brokerage services on its own account or on behalf of another broker, team or entity other than BUZZ;

Compensation

The Broker shall be compensated in accordance with the compensation agreement attached as Schedule A hereinbelow;

Any compensation due to the Broker shall be paid to the Broker immediately as the funds are received by BUZZ or as soon thereafter as practicable;

The Broker undertakes not to share its remuneration, directly or indirectly, with a third party who is not authorized to collect it under the *Act respecting the distribution of financial products and services* (hereinafter referred to as the "**ADFPS**");

The Broker shall immediately notify BUZZ if any third-party Broker is involved and/or to be remunerated in the context of a transaction pursuant to which the Broker renders services according to this Agreement;

The Broker shall not be entitled to any advance or payment from BUZZ against future compensation;

Business Expenses

Except as specifically provided herein, the Broker shall be solely responsible for the payment of all expenses incurred in the course of his activities, including but not limited to office space, travelling expenses, photocopies, telephone, insurance, licenses, contribution and fees, professional or otherwise and fines of any nature whatsoever. The Broker shall provide its own vehicle and be solely responsible for all expenses related thereto;

The Broker shall also be solely responsible for all costs related to any professional training and/or corporate events;

The Broker shall at all times hold valid Q.S.T. and G.S.T. registration numbers, and all amounts owed to said tax authorities shall be entirely paid by the Broker as they become due. The Broker further acknowledges and hereby consents that BUZZ may cause any amounts owed by the Broker as Q.S.T. and G.S.T. to be paid to said tax authorities from the Broker's commissions, the whole according to the law;

Indemnification

The Broker agrees to indemnify and hold BUZZ harmless against any and all liability, extrajudicial legal fees, claims, actions, proceedings, complaints or demands, judicial or otherwise, made by or instituted by any third parties, arising from the brokerage activities of the Broker and his business relationship with BUZZ or caused directly or indirectly by any act, negligence or omission of the Broker in the performance of its obligations;

Term

This Agreement shall be in force for a period of one (1) year from the date of its signature (hereinafter referred to as the "**Term**");

At the end of the Term, this Agreement will automatically renew on every anniversary of the Agreement unless otherwise terminated as provided for herein below;

Termination

This Agreement may be terminated at any time without penalty by either party following a written notice of thirty (30) days prior to the date of termination or non-renewal;

The termination of this Agreement does not release either party from its obligations arising from existing contracts in effect pursuant to this Agreement or from the present Agreement;

In the event of termination, the parties undertake to cooperate with each other in a professional manner until all legal and contractual obligations incumbent upon the Parties have been duly fulfilled;

In the case of a default by either party under the terms of this Agreement, the other party shall be entitled to terminate this Agreement if said default is not cured within five (5) days prior written notice to the other party requiring it to remedy to said default;

Given BUZZ's obligations pursuant to the *Real Estate Brokerage Act*, both parties shall inform affected clients of the Broker's departure from Buzz in a timely manner. It is understood that the parties shall not in any way attempt to influence such clients' decision and shall respect the choice of the clients;

Upon termination of this Agreement, the Broker shall cease all use of or reference to BUZZ in any material, sign or promotional environment, including in any electronic address, domain name or other display of any nature whatsoever, including, without limitation, business cards, stationery and any other promotional items or items used in communications or presentations to current or potential clients;

Insurance

The Broker declares being covered by liability insurance in the amount of [...] and hereby represents that it has provided a copy of said policy to BUZZ in accordance with regulatory requirements;

The Broker undertakes to maintain its insurance coverage in force for said amount for the duration of the present Agreement;

The Broker shall be solely responsible for paying all costs associated with its insurance coverage;

The Broker shall immediately inform BUZZ of any changes to its insurance coverage, including but not limited to any cancellation of the policy;

Broker's Obligations

The Broker shall at all times act in accordance with its applicable legislation, rules, by-laws and regulations, BUZZ's internal policies and rules of professional conduct, its contractual obligations towards third-parties and this Agreement (hereinafter referred to as the "**Rules of Professional Conduct**");

The Broker shall at all times, maintain its independence and avoid placing itself, directly or indirectly, in a situation of conflict of interest;

The Broker shall immediately report any breach of the Rules of Professional Conduct to BUZZ's responsible officer (hereinafter referred to as the "**AEO**");

The Broker shall always act professionally with honesty, loyalty and competence;

The Broker shall act in accordance with its professional knowledge. The Broker shall obtain the assistance of the AEO as required before making any representations to third-parties which could in his professional opinion bind BUZZ;

The Broker shall at all times ensure the validity of its certificate and/or registration with the OACIQ, during the entirety of this Agreement, and shall provide a copy to the AEO. The Broker shall immediately disclose, in writing, any changes to its status with the OACIQ;

The Broker shall at all times comply with any requests from the AEO, any staff assigned to BUZZ's compliance activities or any individual mandated by the OACIQ;

The Broker shall at all times ensure the validity of its liability insurance;

The Broker undertakes to immediately inform BUZZ of any change, modification and/or update regarding its right to practice and/or its capacity to practice the profession of real estate broker;

The Broker shall inform the OACIQ and BUZZ if it intends on holding a second job and/or active source of income. Should the Broker intend to do same, it shall complete the second job disclosure form and submit it to the AEO;

The Broker shall keep itself informed of information issued by the OACIQ, including but not limited to, the OACIQ Bulletin and Info-Compliance;

The Broker shall have a business continuation plan in place, to be applied in the event the Broker becomes unfit, is deceased, is no longer authorized to practice its activities and/or any other situation causing the Broker to be unable to exercise of its professional functions. Such plan shall be disclosed to BUZZ in writing at the signature of the present Agreement;

The Broker shall at all times ensure the protection of personal and confidential information;

The Broker shall at all times maintain up-to-date accounting registers and proper records and shall comply with the record keeping procedure adopted by BUZZ;

The Broker shall comply with all its continuing education obligations;

The Broker shall at all times cooperate with BUZZ's internal programs, including BUZZ's compliance program;

Advertising, representations and solicitation of clientele

When advertising, making representations or soliciting customers, the Broker shall, at all times, use its official name, its professional title according to the discipline(s) for which it is duly registered and authorized to practice, and its status as a representative of BUZZ;

The Broker must identify BUZZ in all professional representations made online or on social media;

The Broker shall under no circumstances make any representations that are false, erroneous, misleading, or that could be interpreted as such;

The AEO may at any time, and without justification, order the Broker to remove any publication that does not comply with applicable legislation, that damages or could potentially damage the Broker's and/or BUZZ's reputation, or is considered by the AEO to be inappropriate in any way;

The Broker is explicitly prohibited from advertising any interest rates;

Meeting with clients

When meeting with a client for the first time, the Broker shall always provide the following information, in writing:

Its full official name;

The professional title and discipline for which it is duly registered and authorized to practice;

Its status as a representative of BUZZ, all while providing BUZZ's contact details, including the main address, telephone number, email address and official website;

The Broker shall always inquire about the client's situation in order to best identify the client's needs;

The Broker shall advise clients adequately, solely in matters in which it is authorized to practice;

Delegation

Should the Broker wish to delegate any of its tasks to a third-party, it shall provide BUZZ with a written agreement outlining the tasks being delegated and the duration of said delegation;

Vacations and holidays

The Broker shall be responsible for its own vacations and/or holidays and shall provide an adequate replacement during its absence;

Resources

BUZZ undertakes to provide the Broker with all the necessary information, resources and support required for its practice;

Miscellaneous provisions

This Agreement may be executed in several counterparts, each of which when so executed shall be deemed to be an original, and all of which together shall constitute one and the same agreement;

The present Agreement annuls and replaces any prior Agreements, either verbal or written. No amendments or modifications to this Agreement shall be valid and binding unless set forth in writing and duly signed by all the parties hereto;

Where appropriate, the singular shall be deemed to be the plural and the masculine gender either feminine or neuter or vice versa. The capitalized and other subheadings and titles are for convenience or reference only and do not affect the interpretation of this Agreement;

This Agreement shall be binding upon the parties hereto, their agents, legal representatives, administrators, successors, transferees and assigns;

In the event that any one or more of the provisions of this Agreement shall be held to be invalid or unenforceable by a court of competent jurisdiction, such provision(s) shall be deemed not to have been written and shall not affect the validity or enforceability of any other provisions of this Agreement;

This Agreement shall be construed in accordance with, and governed in all respects by the laws of the Province of Quebec;

This Agreement has been drawn in the English language at the specific request of the parties hereto. */Cette entente a été rédigée en langue anglaise à la demande spécifique des parties.*

(SIGNATURE PAGE TO FOLLOW)

IN WITNESS THEREOF, THE PARTIES HAVE SIGNED ON _____, 2025.

BUZZ REALTIES INC.
Per: Yelena Kroutos
Duly authorized as she so declares
[Broker's name]
(The "Broker")

SCHEDULE "A"

COMPENSATION

COMMERCIAL TRANSACTIONS - ALL COMMERCIAL PROPERTIES

The division of commissions resulting from commercial transactions shall be as follows:

If a client is referred by BUZZ or by the Broker and it leads to a real estate brokerage contract (hereinafter referred to as " **BC** "), to a promise to purchase or to a promise to Lease, the commission shall be divided equally between both Parties;

If a client is referred by another BUZZ broker (hereinafter referred to as the " **Collaborating Broker** ") and it leads to a BC, to a promise to purchase or to a promise to lease, the commission shall be divided as follows:

50% for the Broker

25% for BUZZ

25% for the Collaborating Broker;

If a client is referred by an external third party and it leads to a BC, to a promise to purchase or to a promise to Lease, the commission shall be divided as follows:

50% for the Broker

25% for BUZZ

25% for the Third Party;

RESIDENTIAL TRANSACTIONS (RESIDENTIAL PROPERTIES AND RESIDENTIAL RENTALS)

The division of commissions resulting from residential transactions shall be as follows:

If a client is referred by the Broker and it leads to a BC, a promise to purchase or a promise to lease, the commission shall be divided as follows:

90% for the Broker;

10% for BUZZ.

If a client is referred by BUZZ and it leads to a BC, a promise to purchase or to a promise to Lease, the commission shall be divided equally between both Parties;

Should the Broker sell any property they personally own or which belongs to any first-degree family member, no Commission shall be payable to BUZZ, unless BUZZ represents the purchaser. The Broker shall however pay a minimum fee of one percent (1%) to the external or internal broker representing the purchaser.

SCHEDULE "B"

Confidentiality and Non-Solicitation Covenants

Enforceability

The Broker acknowledges and hereby agrees that the provisions of Sections 2 through 6 hereinbelow are fair and reasonable for the protection and legitimate business interests of BUZZ Realities Inc. (the "**BUZZ**") and that in the event that the Broker breaches any of them, damages alone would be an insufficient remedy and that, provisional, interlocutory and permanent injunctions would be an essential and appropriate remedy. The Broker further agrees that **Schedule B** does not limit in any way whatsoever its duty of loyalty to BUZZ, which shall continue to apply during and after the termination of the Agreement. In light of its relationship with BUZZ, the Broker fully acknowledges that it will have access to vital and confidential information, of which disclosure to a third party would cause serious and irreparable harm to BUZZ.

Confidentiality

The Broker agrees to keep all Confidential Information (as defined below) in strict confidence both during the term and after its association with BUZZ in perpetuity. The Broker agrees not to disclose directly or indirectly, or make use of, Confidential

Information for any Unauthorized Purpose (as defined below). The Broker shall use commercially reasonable efforts to maintain the confidentiality of the Confidential Information in its possession or control and to prevent any other person or entity from making unauthorized use of the Confidential Information.

The Broker shall immediately notify the AEO of the loss or theft of its computer, telephone, electronic equipment or any documents that may provide access to BUZZ's platform and/or database.

"Confidential Information" means any information of or concerning BUZZ or its clients that is not generally known to the public or which is otherwise of a confidential nature including: the terms of the Agreement, compensation received; client lists and client information; rates and prices; tax returns and other fiscal information; business plans; third party confidences; litigation strategies; contract negotiation strategies; public relations strategies; legal and other professional advice; intellectual property, security information and systems; computer technology or source codes; information which give BUZZ or any of its clients a competitive advantage; any information which if disclosed to competitors of BUZZ could reasonably be expected to give them a competitive advantage; all documents or records marked confidential or proprietary or which is disclosed to the Broker upon notification that it is confidential; and all summaries, analyses, compilations, studies or other documents which contain or are derived from or otherwise reflect the foregoing.

"Unauthorized Purposes" means any use or purpose other than for the purposes of furthering the best interests of BUZZ and include, but are not restricted to: (i) use for the Broker's own benefit or the benefit of any other person, corporation, enterprise or entity; (ii) use that is in any way detrimental to the interests of BUZZ or of a client; (iii) use to further the interests of a competitor of BUZZ; or (iv) copying, disclosing, publishing or otherwise disseminating Confidential Information in any manner whatsoever, except as required to perform the Broker's duties under the Agreement.

Return of Property

All files and documents pertaining to listings, leads and transactions are the property of BUZZ and shall be delivered to BUZZ by the Broker immediately upon request or termination of this agreement. The Broker acknowledges that BUZZ's method of conducting business is a protected trade secret. The Broker shall not use to its own advantage, or the advantage of any other person, business, or entity, except as specifically agreed in writing, either during the Broker's association with BUZZ, or thereafter, any information gained for or from the business, or files of BUZZ.

Non-Solicitation of Customers/Clients/Suppliers

The Broker agrees that it will not, directly, or indirectly, either as employee, employer, broker, agent, principal, or in any other individual or representative capacity whatsoever, or on behalf of any person, during the term of the Agreement, or for a **one (1) year period** after its termination for any reason, solicit or encourage BUZZ's Clients to alter, modify, vary, diminish or cease their relationship with BUZZ.

Non-Solicitation of Employees or Team Members

The Broker agrees that it will not, directly or indirectly, either as employer, consultant, agent, principal, partner, shareholder, proprietor, investor, financier, employee, director or in any other individual or representative capacity whatsoever, or on behalf of any person, during the term of the Agreement, or for a **two (2) year period** after its termination for any reason : cause or attempt to cause any employees or associates of BUZZ to leave BUZZ, or to alter, modify, vary, diminish or cease their services with the BUZZ (i) while such employee or associate is in the employment or service of BUZZ; or (ii) during the one hundred and eighty (180) day period which immediately follows the cessation of such employment or service.

Non-Disparagement

The Broker agrees not to disparage or make any negative comments, whether verbally or in writing, about BUZZ, nor to act in any manner which could be intentionally harmful to BUZZ, its reputation and/or goodwill. This obligation shall remain in full force and effect despite any termination of this Agreement.